

KAMALA STEPHEN KAIFA KORLA and
RICHARD F. D. SMALLWOOD, Appellants, v.
MAMADEE KORLA AND KIMO KORLA,
Appellees.

APPEAL FROM THE CIRCUIT COURT, SIXTH JUDICIAL CIRCUIT,
MONTSERRADO COUNTY.

Argued March 26, 1973. Decided April 26, 1973.

1. All issues of law raised in the pleadings must first be disposed of by the trial court before it considers the issues of fact.

An action for cancellation of a deed executed by one appellant to the other was brought by appellees, who alleged they were owners, as well, of the unpartitioned property conveyed. Legal contentions were advanced by both sides in their pleadings, including the issue of proper pleading in confession and avoidance. Nonetheless, the trial court ruled that no issues of law had been presented and that the case was to proceed to trial on the issues of fact, at which trial a final decree was rendered cancelling the deed. An appeal was taken from the judgment entered against respondents. At the time of argument of the appeal, counsel for appellees conceded on the record that issues of law had been raised in the pleadings. He then requested the case be remanded. The Supreme Court commented on the obviousness of the issues of law raised in the pleadings and, therefore, *reversed* the judgment and *remanded* the case to be tried *de novo*.

Appellant *Richard F. D. Smallwood*, *pro se*. Co-respondent did not appear in the case. *J. Dossen Richards* for appellees.

MR. JUSTICE HORACE delivered the opinion of the Court.

On December 3, 1970, appellees, petitioners in the Civil Law Court for the Sixth Judicial Circuit, Montserrado County, brought an action against appellants, respondents in the court below, to cancel a deed executed by co-respondent Kamala Stephen Kaifa Korla to co-respondent R. F. D. Smallwood, which petitioners alleged was illegally executed because the property in question is jointly owned by petitioners and co-respondent Kamala Stephen Kaifa Korla, and has not been partitioned.

Respondents were duly summoned on December 3, 1970, and on December 14, 1970, co-respondent R. F. D. Smallwood filed an answer consisting of four counts, setting forth mainly that (1) the petitioner had stated no legal ground for cancellation of his deed, which had been duly probated and registered according to law without objections; (2) that fraud, duress, and undue advantage not being evident on the face of the complaint, cancellation could not lie, especially so since nineteen years had elapsed since his acquisition of the property and petitioners had not protested until he instituted ejectment proceedings to recover his property, which indicated that they had not come into equity with clean hands; and (3) that it is a settled principle of law that where two or more parties own a parcel of land which can be easily apportioned, if one of the parties sells a portion thereof, at the time of apportionment the portion already sold may be deducted and placed against his share. Co-respondent Kamala Stephen Kaifa Korla neither appeared nor answered.

On December 24, 1970, petitioners filed a nine-count reply countering the points raised in the answer of co-respondent Smallwood, stating, *inter alia*, (1) that the answer was badly pleaded because under the principle of confession and avoidance, the factual issues averred in the complaint should have been admitted before setting up the plea in bar contained in count one of the answer; (2) that the averment in the answer with respect to ab-

sence of fraud had no basis in fact, because co-respondent Smallwood, who was counsel for petitioners, knew that the land was procured for petitioners and co-respondent Kamala Stephen Kaifa Korla jointly, and, therefore, it was Smallwood who was attempting to fraudulently dispossess petitioners of their property; (3) that no survey was made of the property, because in an attempt to survey it the surveyor was stopped for the reason that the Sandee Bush (a secret cultural female society) was meeting; and (4) denying the legal correctness of the principle advanced in the answer with respect to the apportionment of land jointly owned by several persons, when one of the joint owners has unilaterally disposed of a portion of said land.

Before the issues of law raised in the pleadings could be disposed of, Smallwood filed a motion to dismiss the action, which was resisted by petitioners. Since we are not determining this case upon the basis of all the issues involved, we do not think it necessary to go into details of the motion and resistance.

On May 19, 1971, Judge Frederick K. Tulay, presiding over the March 1971 Term of the Civil Law Court for the Sixth Judicial Circuit, Montserrado County, passed on the motion to dismiss, which he denied, and on the same day disposed of the issues of law involved in the pleadings, stating, *inter alia*:

"In going through the pleadings, we discovered that there are not issues of law involved and for this reason, this court rules that the trial of this case must be held on factual issues raised in the petition, the answer and such factual issues raised in the reply which were not raised in the petition."

The issues of law having been disposed of as indicated above, trial was held during the June 1971 Term of the Civil Law Court, Judge William O. Kun presiding by assignment, who rendered a final decree on August 6, 1971, cancelling the deed executed by co-respondent

Kamala Stephen Kaifa Korla to co-respondent R. F. D. Smallwood.

It is from the final decree that this case is properly before us on appeal on a six-count bill of exceptions.

It should be remarked here that in the court below petitioners were represented by the late counsellor John Stewart, whose unfortunate and greatly regretted death made it necessary for petitioners to procure other eminent counsel in the person of counsellor J. Dossen Richards to represent them here. Counsellor R. F. D. Smallwood represented his own interest both in the court below and before us.

In arguing before this Court, counsellor Smallwood particularly stressed counts one, two, and three of his bill of exceptions, dealing with the point of the judge improperly passing over the issues of law in the court below. When counsellor Richards commenced his argument after a few questions from the bench, by permission of the Court he made a statement for the record.

"Counsellor Richards, after due consideration, feels that there were some issues of law raised in the pleadings that the court should have, under the law and practice, specifically passed upon and decided; and therefore count 3 of his brief in which he contended there were no issues of law raised in the pleadings is hereby withdrawn; and that he respectfully requests that this case be remanded for retrial with instructions that the lower court resume jurisdiction and hear and pass upon the issues of law raised in the pleadings."

To this laudable position of counsel for petitioners, counsellor Smallwood, of course, interposed no objections.

It is our view that Judge Tulay committed reversible error when he ruled that no issues of law were raised in the pleadings. We wonder how he could have arrived at such a conclusion when petitioners in their reply averred that under the principle of confession and avoidance, Smallwood should have admitted the factual issues

in the complaint before setting up a plea in bar, to mention just one of the issues of law raised in the pleadings.

This Court has in a long line of opinions held that issues of law must be decided before issues of fact. All questions of law raised in pleadings must first be disposed of by the trial court. *Wolo v. Wolo*, 8 LLR 36 (1942). It is a fundamental rule of law, as well as of pleading and practice, that issue must be joined before a cause can be legally tried, and it is an equally basic rule of law that all issues of law must first be disposed of by the court before considering issues of fact. *Johns v. Witherspoon*, 8 LLR 462 (1944); *Reeves v. Knowlden*, 11 LLR 199 (1952); *Johns v. Johns*, 11 LLR 312 (1952); *Togai v. Johnson*, 12 LLR 176 (1954); *Johnson v. Dorsla*, 13 LLR 378 (1959).

From the foregoing, we do not see how we can go into the questions of fact which are contained in the complaint and subsequent pleadings. As the case at present stands we cannot do otherwise than reverse the judgment of the court below, with instructions that the trial court resume jurisdiction and try the case *de novo*, commencing by properly disposing of the issues of law and progressing from that point to final adjudication of the issues joined. Costs to abide final determination of the case. It is so ordered.

Reversed and remanded.